

## 24STCV23615 24STCV23615

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 24STCV23615 Hearing Date: June 29, 2026 Dept: 307

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13 TENTATIVE RULINGS 9:00 a.m., Monday, June 29, 2026

SANAZ

SAHA v. KOUROSH NETTY, et al.

[Case No. 24STCV23615]

### 1. MOTION FOR SUMMARY JUDGMENT OF THE

FIRST AMENDED COMPLAINT, OR ALTERNATIVELY, SUMMARY ADJUDICATION OF THE 15TH AND 17TH CAUSES OF ACTION OF DEFENDANTS BRITTNEY GHADOUSHI, MASOUD NETTY, NILOOFAR NETTY, BIJOU NETTY, AND DOREEN NETTY

### 2. MOTIONS TO COMPEL FURTHER

RESPONSES TO DISCOVERY INSTRUMENTS SERVED ON DEFENDANTS BRITTNEY GHADOUSHI, MASOUD NETTY, NILOOFAR NETTY, BIJOU NETTY, AND DOREEN NETTY

The Court

addresses plaintiff's motions to compel against the four defendants who are also the moving parties on the motion for summary judgment, namely defendants-Doreen Netty, Britteny Ghadoushi, Niloofar Netty, and Masoud Netty. These four defendants (collectively referred to as "defendants") are represented by the Bremer, Whyte Law Firm. Plaintiff also filed a motion to compel against defendant Kourosh Netty, Kourosh is self-represented and, as far as the Court knows, did not file an opposition to plaintiff's motion to compel against him.

Plaintiff

filed an opposition to defendants' separate motions for summary judgment that is based on subdivision (h) of CCP 437c, to wit. claiming under subdivision (h)

that “it appears from the affidavits submitted in opposition ... that facts essential to justify opposition may exist but cannot, for the reason stated, be presented.” Plaintiff did not file any affidavits as required by subdivision (h), but she argues that her motions to compel the moving defendants to provide further discovery are sufficient to comply with the requirements of subdivision (h). See, Plt. Supp. Opp., filed 6/17/26. Plaintiff, in other words, has linked her ability to oppose the summary judgment motion to a claim under subdivision (h) that essential facts may exist and, therefore, in prevailing on the current discovery motions.

#### The Appendix

to these tentative ruling provide a timeline to document the main pleadings that have been filed on defendants' motion for summary judgment and on plaintiff's motions to compel further discovery responses. The events on the summary judgment timeline are bolded to distinguish them from the discovery timeline.

#### The Court

will hear argument on plaintiff's motions to compel. The Court's tentative view, however, is that the discovery responses (which are now completed) fail to provide evidence that could defeat the motions for summary judgment. In other words, the record does not support further delay because plaintiff does not show “that facts essential to justify opposition may exist.”

#### DEFENDANTS

HAVING FILED SUPPLEMENTAL RESPONSES, PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES IS DENIED

#### The

moving defendants (on the summary judgment motions) have provided supplemental responses to plaintiff's discovery motions, e.g. to form interrogatories, special interrogatories, requests for admission and requests for documents. The moving defendants filed verified supplemental responses to satisfy plaintiff's discovery motions on June 19, 2026. If the supplemental responses were inadequate, the Court would expect that plaintiff would have filed a separate statement to itemize any deficiency. Plaintiff has not filed any objection to the sufficiency of the supplemental responses.

#### Trial is

set for July 20. New discovery is closed. CCP 2024.020. The moving defendants seek summary adjudication as against the two causes of action pled against them,

namely the 15th and 17th causes of action, for intentional infliction of emotion distress (IIED) and conspiracy.

The

supplemental responses for the moving defendants (on the summary judgment motion), namely Doreen Netty, Britteny Ghadoushi, Niloofar Netty, and Masoud Netty, are provided in Exhibit D to the Lauren De Leon declaration filed on June 25, 2026.

The Court

has examined the supplemental responses provided by Doreen Netty, one of the four moving defendants, on an individual basis. The Court's assumption is that Doreen Netty's supplemental responses are representative of the responses providing by the other parties moving for summary judgment. The Court, in the following paragraphs, paraphrases the requests as well as the responses for Doreen Netty. This exercise is intended to evaluate whether plaintiff's discovery plan is well-conceived to discover admissible evidence on the two causes of action pled against the moving defendants and to determine whether the supplemental responses adequately address plaintiff's discovery motions.

A. Form Interrogatories/supplemental responses by Doreen Netty:

2.1;

2.1, 2.3, 2.5, 2.6: seeks background info. for the responding party

Suppl

response: background info given, after needless objections

12.1:

seeks identify of witnesses etc. to incident:

Suppl

response: identifies as witnesses: Brittny Ghadoushi, Sanaz Saha, Kourosh Netty, Masoud Netty, Niloofar Netty, Bijou Netty, and Doreen Netty, after needless objections.

12.6:

seeks any report made by any person concerning incident

Suppl

response: identifies police report

15.1:

seeks basis for each affirmative defense:

Suppl.

Response: information provided

17.1:

For all RFA not admitted, facts upon which response is based:

Suppl.

Response: identifies as RFA that were denied (not admitted) ##14, 15, 16, 18, 21, 22, 23, 27, 29, 31-33, 34, 35, 36-40; for those RFA, identifies as witnesses and states she has no docs in her possession, custody or control that is responsive.

B. Special

Interrogatories/supplemental responses by Doreen:

5. All

COMMUNICATIONS w Kouresh Netty in which plt. was discussed

Suppl.

Response: after objections, ans. is given at p. 5.

10. All

COMMUNICATIONS "in which you expressed opinions about plaintiff's religion, faith, culture, or background

Suppl.

Response: generally describes family comments about plaintiff's pregnancy

11. All

COMMUNICATIONS w Kourashi or members of his family re plaintiff's pregnancy

Suppl.

Response:

12: All

internet threads in which plaintiff was discussed

Suppl.

Response: none

20. All

COMMUNICATIONS in which YOU discussed Kourosh's decision to file a restraining order or other litigation against plaintiff

Suppl

Response: does not recall any communication on the topic

28. All

COMMUNICATIONS in which you discussed whether plaintiff was a "gold digger, con artist, or similar term, and all facts supporting

Suppl.

Response: never called plaintiff any such term

31.

DESCRIBE all steps YOU have taken to preserve electronic evidence relating to plaintiff or this lawsuit

Suppl.

Response: has "refrained" from intentional deletion of such materials

32.

DESCRIBE all steps YOU have taken to hide or restrict access to electronic COMMUNICATIONS

Suppl.

Response: took no such steps

33.

IDENTIFY all devices that contain any COMMUNICATIONS about plaintiff

Suppl.

Response: does not recall the specific phone models owned in last 5 years.

### C. REQUESTS FOR ADMISSION

These are

not summarized because only the denials of requests for admission are relevant to the form interrogatory 17.1 series. The form interrogatory responses are addressed under section A above.

### D. REQUESTS FOR DOCUMENTS

6. All

COMMUNICATIONS re plaintiff's religion, faith, or cultural background

Suppl.

Response: can't respond--request does not identify communications with any participant

9. All

COMMUNICATIONS re Emergency Protective Order issued o/a 9/14/22

Suppl.

Response: can't respond—no identification of an such Protective Order

21. All

COMMUNICATIONS re surveillance of or following of plaintiff

Suppl.

Response: can't respond—no identity of any participant

23.

Complete exports of all GROUP CHATS in which plaintiff was discussed

Suppl.

Response: can't respond—respondent has no such things

24. All

saved messages re plaintiff from any GROUP CHAT

Suppl.

Response: can't respond—request has insufficient identification

25. Docs

that "show the membership and administrators of any GROUP CHAT in which plaintiff was discussed

26. All

COMMUNICATIONS re how plaintiff or this lawsuit could be discussed in a GROUP CHAT

28. All screenshots YOU took of plaintiff's SOCIAL MEDIA content;

Suppl.

Response: items requested never existed

29. All

saved items from plaintiff's SOCIAL MEDIA accounts

Suppl.

Response: items requested never existed

30.

Identify all of YOUR SOCIAL MEDIA accounts

Suppl.

Response: gives Instagram account

31.

Download Your Information from SOCIAL MEDIA platforms re plaintiff

Suppl.

Response: search made; items requested never existed.

33. Docs

showing logins to view plaintiff's SOCIAL MEDIA or online content

Suppl.

Response: search made: items requested never existed

37. All

photos/videos of ISABELLA in YOUR possession

Suppl.

Response: identifies 3 photos/videos

38.

Metadata and/or EXIF data for all photos/videos of plaintiff or ISABELLA  
produced in response to these requests

Suppl

Reponse: various objections

66. All

COMMUNICATIONS re any batterer intervention program attended by Kourosh

Suppl.

Response: search made; no items in control of respondent

67. All

COMMUNICATIONS between YOU and Kourosh after DVRO was issued on 6/7/23

Suppl.

Response: objects due to privacy, vagueness, harassing

68. All

docs showing any attempts to circumvent the DVRO

Suppl

Response: diligent search made; such items never existed.

99. All

notes, memos, similar records about plaintiff not privileged

Suppl.

Response: identifies photos of plaintiff

103. All

docs showing plaintiff was not harmed by your conduct

Suppl.

Response: identifies photos of plaintiff and plt's depo transcript



104. All

docs supporting your contention you did not discriminate against plaintiff based on “her religion, faith or culture.”

Suppl.

Response: identifies photo of plaintiff

115. All

docs YOU intend to use at depo., law & motion hearing, or at trial

Suppl.

Response: identifies 5 docs

#### SUPPLEMENTAL

RESPONSES ADEQUATELY RESPOND TO PLAINTIFF’S

DISCOVERY MOTIONS

The

supplemental responses adequately provide information to the discovery requests that the Court previously ordered to be supplemented. The Court sustained defendants’ objections to requests for financial information including tax returns from the moving defendants.

The Court

finds that moving defendants Doreen Netty, Britteny Ghadoushi, Niloofar Netty, and Masoud Netty have complied with their discovery obligations. The Court therefore DENIES plaintiff’s motions to compel further responses from defendants Doreen Netty, Britteny Ghadoushi, Niloofar Netty, and Masoud Netty.

No

further discovery is authorized given that the scheduled trial is less than 30 days away.

#### SUMMARY

JUDGMENT IS GRANTED BECAUSE PLAINTIFF HAS NOT RAISED A TRIABLE ISSUE OF FACT

The Court

rejects plaintiff’s argument that CCP 437c, subdivision (h) precludes the Court from deciding defendants’ motion for summary judgment. The information revealed

in defendants' supplemental discovery responses supports a denial of plaintiff's motions to compel. The Court further notes that plaintiff has not sought to take the deposition of any of the moving defendants, not even of Britteny Ghadoushi although she filed a declaration on February 13, 2026 supporting her motion for summary judgment.

Moving

defendants' motion carries their burden to shift to plaintiff the burden of presenting evidence to raise a triable issue to support her 15th and 17th causes of action. Plaintiff provides no evidence to support her claims for IIED and conspiracy. Thus, summary judgment should be GRANTED in favor the moving defendants.

This TR

was emailed to counsel on June 29, 2026 at 8:30 a.m.

#### APPENDIX

12/9/25 Plt serves four discovery instruments on each defendant that is moving for summary judgment. The total requests exceed a thousand

2/13/26 Defendants file motion for summary judgment, set for hearing on 5/12/26

2/13/26 Defendants serve responses to discovery instruments

3/26/26 After unsuccessful meet & confer, parties enter into tolling agreement

4/18/26 Defendants (except Bijou Netty) serve additional responses to discovery instruments

4/27/26 Plaintiff files motions to compel against defendants seeking summary judgment

4/28/26 Plt files opposition to summary judgment (6 days late)

5/1/26 Defendants file reply in support of summary judgment

5/11/26 Deft Bijou Netty serves additional discovery responses

5/13/26 Court issues TR on SJ motion, granting continuance  
under subd. (h)

5/16/26 4 defts. serve corrected additional discovery responses

5/21/26 Parties sign stipulation

6/5/26 A Defts  
serve privilege log for docs subject to atty/client and work product privileges

6/12/26 B, C Defts  
serve Production Index and verification to Niloofar Netty supplemental  
responses

6/17/26 Plt serves suppl. opposition to support 437c(h) claim

6/19/26 D 4  
defts-- Doreen Netty, Britteny Ghadoushi, Niloofar Netty, and Masoud Netty—serve  
the supplemental discovery responses that are discussed in Motion A.